

26PSCV01151 26PSCV01151

County: los-angeles

Division: Civil Law and Motion

Department: O

Hearing date: 2026-09-10

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=EA%20%2CO%2C09%2F10%2F2026

Source SHA-256: 8c03cdc9a298f80181222db5cd49302da0f7bcf3d18ef4e3402fb0ff27502d6c

Case Number: 26PSCV01151 Hearing Date: September 10, 2026 Dept: O

Tentative Ruling

(1)

DEFENDANT MG MONTE VISTA APARTMENTS COR L.P.'S DEMURRER TO PLAINTIFFS' FIRST AMENDED COMPLAINT is OVERRULED in part (i.e., 2nd COA for BREACH OF COVENANT OF QUIET ENJOYMENT) and SUSTAINED in part (i.e., 4th COA for fraud). Should Plaintiffs seek leave to amend on the 4th COA, they must be prepared to provide the court with specific facts.

(2)

DEFENDANT MG MONTE VISTA APARTMENTS COR L.P.'S MOTION TO STRIKE PARTS OF PLAINTIFFS' FIRST AMENDED COMPLAINT is DENIED.

Background

This is a
habitability case.

On

March 27, 2026, Plaintiffs Hector Jimenez, an individual; Marta Jiemenez, an individual; Hector Jimenez Jr., an individual; Bella Jimenez, a minor by Hector Jimenez her guardian ad item; Giovanni Jimenez, a minor by Hector Jimenez her guardian ad litem filed suit against Defendant MG Monte Vista Apartments COR LP for:

(1) BREACH OF WARRANTY OF HABITABILITY

(2) BREACH OF COVENANT OF QUIET ENJOYMENT

(3) NEGLIGENT MAINTENANCE OF PREMISES

On

May 8, 2026, a demurrer was filed, which was sustained with leave to amend by this court on 6/9/26.

On July 7, 2026, a first amended complaint (FAC) was filed, asserting a fourth COA for fraud.

On

August 17, 2026, the instant demurer was filed with a motion to strike (MTS).

On

August 27, 2026, an opposition was filed.

On

September 2, 2026, a reply was filed.

Discussion

Before engaging in the merits of this demurrer, the court will previously revisit its 6/9/26 ruling. In that ruling, the court agreed with Defendant that the complaint lacked sufficient facts to establish that Defendant was put on notice of the alleged conditions and that Plaintiffs, despite alleging that the problems have been ongoing throughout their tenancy, provided no actual facts regarding such “verbal and written” notices. As stated in that ruling, “the only possible notice happened when the maintenance worker was sent, but even as to that, notice of what is not provided. Thus, without notice, Defendant is deprived the opportunity to repair the issue prior to Plaintiffs bringing this suit.” (See 6/9/26 Ruling.) Not only were the ultimate facts needed for the demurrer, but as Plaintiffs sought punitive damages, that requires specific facts to support such claim; mere conclusions are not enough. (Plus, as also stated in that previous ruling, Plaintiffs own case citations provided that the plaintiffs/tenants are to allege what notice and on what days.

Accordingly,

this court determined that “[a]bsent more information about the number of

notices regarding the mold and other problems (which the court is not disputing exists at the pleading stage), the court cannot ultimately determine whether there are circumstances of spite or malice, or a fraudulent or evil motive on the part of the defendant, or such a conscious and deliberate disregard of the interests of others that his conduct may be called willful or wanton."

Now, the issue is whether the FAC cures the outlined defects.

The court agrees that the FAC does provide more allegations as to when and to whom they gave notice about various alleged defective conditions at the Premises. They have addressed the date, the manner, the location, the content of the communication, the name of the person acting in representation of Defendants, and the response they received. For example, they allege that "Two months after moving into the Premises, on or about June 2019, Plaintiffs noticed the presence of black mold. Plaintiffs immediately communicated the issue to [Charlene] Cruz, in an in-person conversation."

(¶22.) (Cruz is alleged to be an agent/on-site manager; ¶15.) However, "Ms. Cruz instructed Plaintiffs to clean the mold and told them that the issue was not for Defendant to resolve and that they should instead clean out the mold on their own." ¶22.)

And it appears Defendant agrees that Plaintiffs added the necessary facts as they now only demur to the Breach of the Covenant of Quiet Enjoyment and the newly added fraud COAs. For reasons to be explained below, the court overrules and sustains in part the demurrer.

2nd COA:

As noted in demurrer, the law regarding the 2nd COA is as follows: a tenant must prove more than just that a "uninhabitable condition" existed, it must substantially that a tenant must prove more than just that an "uninhabitable condition" existed, it must substantially interfere with the use and enjoyment of the unit. *Petroleum Collections Inc. v. Swords* (1975) 48 Cal.App.3d at 847) In order to establish a substantial interference, Plaintiffs' must establish either actual eviction or constructive eviction that was a direct result of

Defendant's conduct. In turn, a constructive eviction occurs when the breach "substantially affects the tenant's beneficial enjoyment of the premises." (Id. at p. 846.)[1]

Defendant argues, rather simply, that "the mere perceived nonspecific presence of mold in "the bathroom and bedrooms" is insufficient to establish that it has substantially interfered with the use of the unit." (Demurrer p. 6; see also Reply p. 4:8-10 ["Here, Plaintiffs' primary use of the unit is residential. They have set forth no facts to establish that Defendant's conduct has deprived them of the benefits of using the property for residential purposes, they mistakenly conflate Defendant's alleged failure to repair as automatically resulting in an interference with their use."].)

However, this is a demurrer, not a summary judgment motion nor a trial. The pleading has alleged that there was persistent mold; that they expressed concerns that they had begun to experience symptoms from the mold, including respiratory conditions and headaches; that their children were very little and were falling ill too often and having a hard time breathing; and that over the course of the year 2020, on at least 15 occasions, Plaintiffs would stop by the front office and ask Ms. Cruz to send someone to remove the mold. (See FAC pp. 5-7.) While Defendant may think that persistent mold and the associated health problems is not an inconvenience to substantially interfere with the tenants' enjoyment of their home, that is not to be adjudicated on a demurrer.

Thus, as Plaintiffs have pled constructive eviction i.e., not being able to live safely in their unit, then the court OVERRULES the demurrer as to this COA.

4th COA:

As for the fraud COA, that is premised upon allegations that "At the time of these negotiations, Defendants, by and through Ms. Cruz, were aware that the Premises evidenced defective conditions, including mold, mildew, defective ventilation, excessive moisture accumulation, structural damage, damaged ceiling, and other issues that were not visibly noticeable. At no point did Ms. Cruz disclose the existence of these defects. Furthermore, not only did Ms. Cruz fail to inform Plaintiffs of the defective conditions, but Ms. Cruz even represented to Plaintiffs that the

Premises were “in good condition” and that the Premises were perfectly suited for a family like Plaintiffs to occupy.” (§80.)

Defendant argues that is COA, which requires specific, particular facts, is not adequately pled.

The court agrees.

Ultimately, Plaintiffs have no support to establish that these alleged conditions existed prior to their tenancy. If anything, though not expressly argued by Defendant, the allegations may actually undermine a fraud COA as the FAC alleges that “Plaintiffs performed a visual tour of the Premises before moving in, but these issues were not discoverable by a visual inspection” (§ 82) and that the mold became visible about “[t]wo months after moving into the Premises” (§22). Accordingly, the inference from those allegations is that the mold happened after they moved in, not before. It is also unclear how any inference regarding fraud can be drawn from the heavy reliance upon paragraph 85, which alleges that Ms. Bribiesca was motivated by her duty to her employer, Defendants, to pursue financial gain, and in doing so decided to lie to Plaintiffs and threaten them with an eviction she knew she could not pursue, to secure payment of charges and fees Defendant was not entitled to.” To the extent Plaintiffs argue they don't need to plead evidentiary facts, they are conflating specific facts with evidentiary facts. (Opp. p. 5:19-21.)

The court is inclined to sustain this COA WITHOUT leave to amend. Should Plaintiffs seek leave to amend, they must be prepared at oral argument with specific, particular facts that would demonstrate Defendant knew of the mold but intentionally failed to disclose it.

Motion to Strike:

Defendant seeks to strike punitive damages because “a garden variety habitability action involving allegations of delayed and/or quality of repairs at the Subject Property. There are no allegations in the FAC that rise to the level of extreme indifference to Plaintiffs' rights or despicable conduct on Defendant's part.” (Motion p. 10:18-21.)

The court disagrees that there are

“no facts” alleging a conscious disregard for Plaintiffs. The FAC alleges numerous times Plaintiffs notified Defendant of the mold and how Defendant stated, through their agents, they would not commission anyone to do such extensive work and that Plaintiffs should solve the problem on their own (e.g., use Clorox, take showers with door open). Accordingly, Plaintiffs have alleged that Defendant have ignored i.e, consciously disregarded Plaintiffs’ vehement concerns and complaints about a serious problem that was also affecting their children’s health (i.e., could be inferred as despicable conduct).

Thus, the court DENIES the motion. That

said, the court notes no opposition nor reply are on file with respect to the MTS.

Conclusion

Based on the foregoing, the demurrer

is sustained in part and overruled in part with leave to amend contingent upon oral argument; the MTS is denied.

[1] Swords is the

only case cited by Defendant, but it is not instructive as that involved a commercial

lease. “Texaco leased a parcel of land located on the northwest corner of

the intersection of Adams Road and Freeway 99 near the City of Fowler to

defendant, Edward Swords. The written lease was for a period of ten years,

called for a rental of \$500 a month and embraced land, a service station and

related buildings and facilities.” (Id. at p. 844.) The distinction is

crucial because there is some difference between how the law treats residential

and commercial leases (e.g., whereas commercial tenants are protected

by an implied covenant of quiet enjoyment (absent contrary provision in the lease), they are not protected by an implied warranty of habitability). Perhaps this is because of the

different uses derived from each and hence how a landlord’s conduct

causing uninhabitable conditions that qualifies as a breach of the covenant of

quiet enjoyment is likely different. Plaintiffs’ reliance upon (Groh v.

Kover’s Bull Pen, Inc, (1963) 221 Cal. App. 2d 611 is equally not helpful

as that too involved a commercial lease (10 year lease for a cocktail lounge

and restaurant).